

The Khasi Hills Autonomous District (Appointment and Succession of Chiefs and Headmen) (Sixth Amendment) Act, 1991

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The Khasi Hills Autonomous District (Appointment and Succession of Chiefs and Headmen) (Sixth Amendment) Act, 1991

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The Khasi Hills Autonomous District (Appointment and Succession of Chiefs and Headmen) (Sixth Amendment) Act, 1991

Rule

THE-KHASI-HILLS-AUTONOMOUS-DISTRICT-APPOINTMENT-AND-SUCCESSION-OF-CHIEFS-AND-HEADMEN-SIXTH-AMENDMENT-ACT-1991 of 1991

Published on 7 September 1995

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The Khasi Hills Autonomous District (Appointment and Succession of Chiefs and Headmen) (Sixth Amendment) Act, 1991

Last Updated 8th February, 2020

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(Passed by the Khasi Hills Autonomous District Council on the 12th March, 1991)

(Received the assent of the Governor on 19th August, 1995)

An Act to further amend, the United Khasi Jaintia Hills Autonomous District (Appointment and Succession of Chief and Headmen) Act 1959 as amended by Act I of 1969, Act II of 1971, Third Amendment Act of 1972, Forty Amendment Act of 1979 and the Fifth Amendment Act of 1980, hereinafter referred to as the Principal Act.

It is hereby enacted by the Khasi Hills Autonomous District Council in the Forty-second year of the Republic of India as follows :-

1.

Short Title, Extent and Commencement.

- (i) This Act may be called the Khasi Hills Autonomous District (Appointment and Succession of Chiefs and Headmen) (Sixth Amendment) Act, 1991.

(ii)

It shall have the like extent as the Principal Act, as amended.

(iii)

It shall come into force at once.

2.

All words and expressions have the same meaning as defined in the Principal Act.

3.

Amendment of Section 2 of the Principal Act.

- In the Principal Act in clause (k) of Section 2 the words "a Sangot" and village elder occurring in between the words "Pator" and "a Sordar Shnong" shall be deleted.

4.

Amendment of Section 6 of the Principal Act.

- In the Principal Act, in Section 6 :-

(a)

the existing Section 6 shall be renumbered as Section 6(1).

(b)

In Clause (a) of sub-section (1) so renumbered for the word "his occurring therein" the word the shall be substituted.

(c)

After sub-section (1) so renumbered a new sub- section as sub-section (2) shall be inserted, namely :-

(2)

Referendum. - If any dispute arises as to whether the Chief has or has not lost the confidence of the majority of the electors or the people of the Elaka as provided in Clause (i) of sub-section (1) above, the Executive Committee may, if deems necessary, hold and conduct a referendum consisting of the electors of the Elaka or of the people of the Elaka as the case may be and take appropriate action on the basis of a simple majority of the result of such a referendum."

5.

Amendment of Section 7 of the Principal Act.

- In the Principal Act, in Section 7 :-

(a)

For the figure and words "Rs. 10 (Rupees ten)" occurring in sub-section (ii) the figure and words "Rs. 40 (Rupees Forty)" shall be substituted.

(b)

for the figure and words "Rs. 25 (Rupees twenty five)" occurring in clause (b) of sub-section (ii) the figure and words "Rs. 100 (Rupees one hundred)" shall be substituted.

6.

Amendment of Section 8 of the Principal Act.

- In the Principal Act, in clause (b) of sub-section (2) of Section 8 for the figure and the words Rs. 25 (Rupees twenty five)" occurring therein the figure and words "Rs. 100/- (Rupees one hundred) shall be substituted.

7.

Amendment of Section 9 of the Principal Act.

- In the Principal Act, in clause (b) of sub-section (2) of Section 9, for the figure and words "Rs. 25 (Rupees twenty five)" occurring therein, the figure and words Rs. 100 (Rupees One hundred)" shall be substituted.

8.

Amendment of Section 16 of the Principal Act.

- In the Principal Act for the existing Section 16 the following shall be substituted, namely :-

16.

Authorisation. - The Executive Committee may, by order in writing, Authorities two of its member to exercise on its behalf any power or powers conferred upon it by this Act and anything heard, any act done or order passed as such by such members of the Executive Committee shall be deemed to have been heard, done or passed by the Executive Committee."

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